

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EMILY MEGHAN MORROW HOWE,

Petitioner

VS.

DYLAN WISEMAN,

Respondent

) Case Number: FDI-25-802119

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE OF SPOUSAL OR PARTNER SUPPORT, IMPUTATION OF
INCOME/ GAVRON WARNING/ SEEK WORK ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Emily Howe (Wife) and Respondent Dylan Wiseman (Husband) married on 8/17/2018.
The agree they separated on 10/1/2025, for a marriage of 7 years and 1 month. The parties do not
have minor children. Wife is represented by attorney Kelly Gamble. Husband is represented by
attorney Louise Sackley.
- 2) On 1/13/2026, a Stipulation and Order for Temporary Spousal Support and Attorney Fees and
Costs was entered which provides in relevant part:
 - a. Effective 11/1/2025, Husband shall pay Wife \$8,513 per month in temporary spousal
support.
 - b. Husband shall pay Smith / Ostler temporary spousal support to Wife.
 - c. Husband shall pay \$10,000 towards Wife's attorney's fees and costs.
- 3) Now on for hearing is Husband's Request for Order filed 5/28/2026 asking the Court to modify
the temporary spousal support order. Husband asks the Court to impute at least \$200,000 in

1 annual income to Wife; in the alternative, Husband asks the Court to subject Wife to a Seek Work
2 Order and issue a Gavron warning. Husband states his base salary has decreased and Wife's
3 income has increased, which warrants a modification of temporary spousal support. Husband also
4 claims that Wife is underemployed, both in terms of the number of hours she is working (she
5 works 30 hours per week) as well as the income she is earning. Husband states that Wife is
6 capable of earning at least \$200,000 annually.

7 4) On 5/28/2026, Husband filed a Declaration of Lisa Trustin, vocational consultant. Ms. Trustin
8 states that she was retained to prepare a labor market report regarding the employability and
9 earning capacity of someone of Wife's background, education, and experience. Ms. Trustin
10 writes, "Ms. Howe has 25 years of work experience in marketing and brand management for
11 educational institutions, media, communications, consulting companies, individuals and most
12 recently, for a law firm in the San Francisco Bay Area." According to Ms. Trustin, someone with
13 Wife's education, background, and experience could qualify for positions such as Creative
14 Marketing Lead, Public Relations, Media and Events Manager, Director of Brand Marketing,
15 Brand and Content Lead, Marketing and Communications Manager, and Solutions Marketing
16 Lead. Ms. Trustin states that based on information found within the California EDD's
17 Occupational Employment and Wage Data and Salary.com, someone with Wife's background,
18 education, and experience could earn between \$171,704 and \$241,630 based on a variety of job
19 titles – advertising and promotion managers, marketing managers, PR Manager, PR Director, and
20 Strategic Marketing Director.

21 5) On 6/24/2026, Wife filed an Income and Expense Declaration. Wife states that she works 30
22 hours per week and earns \$7,500 per month as a marketing lead for OIG. Wife also states that she
23 earns on average \$200 per month from her DEI consulting business. Wife writes that she has
24 experienced a change in income because "My industry, DEI, is now prohibited."

25 6) On 7/17/2026, Wife filed a Responsive Declaration. Wife agrees to modify spousal support but
26 asks that the Court deny Husband's request to impute additional income to her or to subject her to
27 a Seek Work Order. Wife states that she agrees to a Gavron warning. Wife states that Husband
28 stopped paying her the full amount of temporary spousal support owed to her under the
29 stipulation and has unilaterally been paying her \$6,679 per month based on Husband's new

support calculations. Wife also states that Husband has not paid her what she is owed for Smith / Ostler temporary spousal support. Wife asks that the Court use Husband's total projected annual compensation rather than his base salary. Wife states that Ms. Trustin never interviewed her or inquired about her actual job responsibilities throughout her career. Wife contends Ms. Trustin substantially overstates her earning capacity. Wife provided her earnings history, which show that between 2000 – present, she earned in the range of \$28,000 to \$145,000 per year and she is currently earning \$90,000 working 30 hours per week. Her job titles have included Academic Technology Program Manager; Women's and Gender Studies Manager; Public Relations Communications Director; Executive Assistant; Director of Change Management and Communications; Manager and Consultant, Organizational Transformation; Founder and Consultant; and (currently) Marketing Lead. Wife writes, "Viewed as a whole, my career has consistently focused on communications, organizational change, public relations, consulting, executive coaching, and higher education. I have marketed my own consulting practice, helped market a small consulting firm, and now market OIG, but before joining OIG I had never been employed to market a business as my profession. Likewise, I have never held positions responsible for product marketing, demand generation, marketing analytics, marketing technology, sales pipeline management, or leading a corporate marketing department. Those are the skills someone garnering 200K salary would need; not to mention experience actually doing it." Wife also states that she owns a consulting business which generates income from several sources, including DEI-related consulting, coaching, speaking, workshops, programs, and helping professionals develop DEI-related leadership skills and attract clients. However, "Beginning around 2024, the market for DEI in the workplace dramatically shifted and nearly all of my consulting work disappeared. My online programs also declined because they were closely tied to DEI. Rather than remain unemployed or wait for the market to recover, I sought stable employment while continuing to maintain my consulting business on a much smaller scale (currently one program and approximately \$1,700 in the business account)."

- 7) On 7/28/2026, Husband filed a Reply Declaration reiterating his original requests. Husband states, "Ms. Trustin's report does not characterize Emily's background as senior corporate marketing...Nor does the report provide salary data for only senior corporate marketing jobs. It

1 includes PR, Media and Events Manager, Brand and Content Lead job listings and salary data for
2 PR roles.” Husband states that he only received additional income in March 2026 and July 2026.
3 Husband states he did not pay Smith / Ostler support in March 2026 because he was not
4 expecting additional income during that month as bonuses are not typically paid in March.
5 Husband also states, “The total amount of bonus temporary spousal support due to Emily is
6 \$10,556.09. I have paid Emily \$9,848 and will pay the remaining \$708.09 forthwith.”

- 7 8) On 7/28/2026, Husband filed an Amended Income and Expense Declaration. Husband states that
8 he is a lawyer for Buchalter, LLP. He states that he works 45 – 50 hours per week. The paystubs
9 attached to Husband’s Income and Expense Declaration show that he earns on average \$38,841
10 per month in base salary. Husband states that he earns on average \$16,211 in bonuses per month.
11 Husband also reports earning \$1,091 per month in net rental income (not including depreciation).
12 9) On 7/28/2026, Husband filed a Statement of Support Calculations.

13 **B. Findings and Order**

- 14 1) The Court finds that the parties’ recent changes in income are material changes in circumstance
15 warranting a modification of the current temporary spousal support order.
16 2) Effective 6/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated
17 herein, Husband shall pay to Wife temporary base guideline spousal support of \$4,619 per month.
18 Support shall be paid in two equal installments on the first and fifteenth day of the month.
19 3) The parties shall meet and confer to determine whether base or Smith / Ostler support arrears or
20 credits are owed for the period 6/1/2026 – 7/31/2026. Husband shall pay any additional support
21 arrears or credits no later than 9/30/2026.
22 4) In the event that Husband receives any gross income over and above the amounts listed on the
23 XSpouse calculation, said income shall be applied to the bonus table attached to the XSpouse
24 calculation. Within 5 days of receipt of additional income, Husband shall calculate the amount of
25 additional spousal support due to Wife, issue a check to her for the amount due, and provide her
26 with proof of the additional income received, for example, a paystub. Within 10 days of receipt,
27 Wife shall review the calculation and advise Husband if she disagrees with the calculation.
28 5) The Xspouse contains inputs on which the parties agree. For the inputs for which the parties do
29 not agree, the Court makes the following findings and orders.

- 1 a. Wife's request that the Court use Husband's total anticipated annual compensation in the
2 XSpouse calculation is denied. The Court will use Husband's base salary and subject
3 additional earnings to a Smith / Ostler order as set forth above.
- 4 b. Husband's request to impute to Wife \$200,000 in annual income is denied. The Court is
5 not fully persuaded that Wife can earn this level of income. The Court finds this amount
6 exceeds Wife's historical earnings to date. The Court also notes that Ms. Trustin did not
7 interview Wife directly; had she done so, Ms. Trustin's analysis would have been more
8 persuasive. Wife currently earns \$7,500 per month while working 30 hours per week, or
9 approximately \$57.69 per hour. No evidence was presented demonstrating that Wife is
10 unable to work full time. The Court further notes that Wife's consulting business is
11 presently generating minimal income, and Wife could devote those additional hours to
12 compensated employment. Based on the totality of the evidence before it, including Ms.
13 Trustin's report, the Court finds that Wife has the ability and opportunity to work 40
14 hours per week at a rate of \$57.69 per hour, or \$10,000 per month. The Court will impute
15 earning capacity to Wife in the amount of \$10,000 per month. This finding is made
16 without prejudice to the Court's ability to find that Wife is capable of earning more than
17 this amount when it determines long-term / post-Judgment spousal support.
- 18 c. The Court will also input as additional taxable income for Wife \$216 per month in
19 average interest income and \$758 per month in average non-qualified dividend income,
20 which Husband states Wife reported in her 2025 tax return.
- 21 6) Husband's unopposed request for a Gavron warning is granted. Pursuant to Family Code section
22 4330(b), the Court advises Wife that she is expected to make reasonable good faith efforts to
23 become self-supporting. Failure to make such reasonable good faith efforts may be considered by
24 the Court as a factor in determining whether spousal support should be modified or terminated.
- 25 7) Husband's attorney shall prepare the Findings and Order After Hearing.
- 26 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
27 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
28 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
29 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Husband	Wife	Monthly figures		Cash Flow		
#of children	0	0	2026			Guideline	Proposed
% time with NCP	0.00 %	0.00 %	GUIDELINE		Comb. net spendable	29043	29043
Filing status	MFS->	<-MFS	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	1 *			Husband		
Wages+salary	38841	10000	Husband	21267	Payment cost/benefit	-4619	-4619
Self-employed income	0	0	Wife	7776	Net spendable income	16648	16648
Other taxable income	1091	974	Total	29043	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	57%	57%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	0	Total taxes	12383	12383
401(k) employee contrib	2708	0	S.Clara SS	4619	Dep. exemption value	0	0
Adjustments to income	295	0	Total	4619	# withholding allowances	0	0
SS paid prev marriage	5000	0	-		Net wage paycheck	19006	19006
CS paid prev marriage	0	0			Wife		
Health insurance	1282	0			Payment cost/benefit	4619	4619
Other medical expense	0	0			Net spendable income	12395	12395
Property tax expense	1372	0			Change from guideline	0	0
Ded interest expense	1495	0	Proposed		% of combined spendable	43%	43%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	0	Total taxes	3198	3198
Qual bus income ded	0	0	SS	4619	Dep. exemption value	0	0
Required union dues	0	0	Total	4619	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	6824	6824
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Husband pays Guideline SS, Proposed SS

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband

Husband's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	0.00	0	20.82	1,041	0	56,469
10,000	0.00	0	20.82	2,082	0	57,510
15,000	0.00	0	20.82	3,123	0	58,551
20,000	0.00	0	20.82	4,164	0	59,592
25,000	0.00	0	20.76	5,191	0	60,619
30,000	0.00	0	20.71	6,212	0	61,640
35,000	0.00	0	20.61	7,214	0	62,643
40,000	0.00	0	20.49	8,195	0	63,624
45,000	0.00	0	20.39	9,176	0	64,605
50,000	0.00	0	20.31	10,157	0	65,586
55,000	0.00	0	20.25	11,138	0	66,567
60,000	0.00	0	20.20	12,119	0	67,548
65,000	0.00	0	20.15	13,100	0	68,529
70,000	0.00	0	20.12	14,081	0	69,510
75,000	0.00	0	20.08	15,062	0	70,491
80,000	0.00	0	20.05	16,043	0	71,472
85,000	0.00	0	20.03	17,024	0	72,453
90,000	0.00	0	20.01	18,005	0	73,434
95,000	0.00	0	19.99	18,986	0	74,415
100,000	0.00	0	19.96	19,960	0	75,388
105,000	0.00	0	19.92	20,921	0	76,349
110,000	0.00	0	19.89	21,882	0	77,310
115,000	0.00	0	19.86	22,843	0	78,271
120,000	0.00	0	19.84	23,804	0	79,232
125,000	0.00	0	19.81	24,765	0	80,193
130,000	0.00	0	19.79	25,726	0	81,154
135,000	0.00	0	19.77	26,687	0	82,115
140,000	0.00	0	19.75	27,648	0	83,076
145,000	0.00	0	19.73	28,609	0	84,037
150,000	0.00	0	19.71	29,570	0	84,998
155,000	0.00	0	19.70	30,531	0	85,959
160,000	0.00	0	19.68	31,492	0	86,920
165,000	0.00	0	19.67	32,453	0	87,881
170,000	0.00	0	19.66	33,414	0	88,842
175,000	0.00	0	19.64	34,375	0	89,803
180,000	0.00	0	19.63	35,336	0	90,764
185,000	0.00	0	19.62	36,297	0	91,725
190,000	0.00	0	19.61	37,258	0	92,686
195,000	0.00	0	19.60	38,219	0	93,647
200,000	0.00	0	19.59	39,180	0	94,608
205,000	0.00	0	19.58	40,141	0	95,569
210,000	0.00	0	19.57	41,102	0	96,530
215,000	0.00	0	19.56	42,063	0	97,491
220,000	0.00	0	19.56	43,024	0	98,452

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						Total CS	Total SS (adjusted)
Husband's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$			
225,000	0.00	0	19.55	43,985		0	99,413
230,000	0.00	0	19.54	44,946		0	100,374
235,000	0.00	0	19.53	45,907		0	101,335
240,000	0.00	0	19.53	46,868		0	102,296
245,000	0.00	0	19.52	47,829		0	103,257
250,000	0.00	0	19.52	48,790		0	104,218